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DEPARTMENT OF STATE

State of New York

Executive Chamber

No. 64

EXECUTIVE ORDER

APPOINTING A SPECIAL PROSECUTOR TO INVESTIGATE AND, IF WARRANTED, PROSECUTE MATTERS RELATING TO AN ALLEGED SEXUAL ASSAULT OCCURRING IN TOMPKINS COUNTY ON OCTOBER 19-20, 2024

WHEREAS, article IV, section 3 of the Constitution of the State of New York obliges the Governor to take care that the laws are faithfully executed;

WHEREAS, on September 16, 2026, Jane Doe filed a lawsuit in the Supreme Court, New York County, alleging she was the victim of a sexual assault perpetrated by multiple individuals occurring on October 19-20, 2024;

WHEREAS, in November 2024, the Tompkins County District Attorney declined to prosecute any of the alleged perpetrators of the sexual assault, without speaking to Jane Doe, and relied, at least in part, upon information from Jane Doe's sworn statement to the Cornell University Police Department, which reportedly omitted key portions of Jane Doe's account, including Jane Doe's unequivocal assertion that she had been sexually assaulted;

WHEREAS, concerns have been raised, both by Jane Doe and the public, that this incident cannot be fully and thoroughly investigated or prosecuted without conflict or bias, or the public perception of conflict or bias;

WHEREAS, the criminal justice process must be guided by the facts and the law, and the public interest requires an objective review;

NOW, THEREFORE, I, KATHY HOCHUL, Governor of the State of New York, by virtue of the authority vested in me by the Constitution and Laws of the State of New York, and particularly by subdivision 2 of section 63 of the Executive Law, hereby require the Attorney General (hereinafter, the Special Prosecutor) to investigate the conduct of, and, if warranted, present evidence to a grand jury against and prosecute offenses arising out of the allegations of a sexual assault described in the complaint in *Jane Doe v. Cornell University, et al.*, Index. No. 161704/2026 (Sup. Ct. N.Y. County), which is alleged to have occurred on October 19-20, 2024 in Tompkins County;

FURTHER, for any matter covered herein, the Special Prosecutor or her designee shall have the powers and duties specified in subdivision 2 of section 63 of the Executive Law and shall possess and exercise all the prosecutorial powers necessary to investigate, and, if warranted, to prosecute offenses arising from the incident. The Special Prosecutor's jurisdiction will displace and supersede the jurisdiction of the Tompkins County District Attorney, and such District Attorney shall have only the powers and duties designated to such District Attorney by the Special Prosecutor as specified in subdivision 2 of section 63 of the Executive Law;

FURTHER, for any matter covered herein, the Special Prosecutor or her designee shall conduct a full, reasoned, and independent investigation including, but not limited to, gathering and analyzing evidence, conducting witness interviews, and reviewing investigative reports, scientific reports, and audio and video recordings; and

FURTHER, for any matter covered herein, the Special Prosecutor or her designee shall appear in person before a grand jury drawn for any term of the Supreme Court in the County of appropriate jurisdiction, as warranted, for the purpose of conducting any and all proceedings, examinations, and inquiries consistent with this Order, and attend in person any term of the County or Supreme Court to be held in and for the County of appropriate jurisdiction to prosecute any offenses consistent with this Order and to conduct therein any related actions and proceedings.

This Executive Order shall continue until modified, suspended or terminated by the Governor.



GIVEN under my hand and the Privy Seal of the State in the City of Albany this 1st day of October in the year two thousand twenty-six.

Kathy Hochul

BY THE GOVERNOR

Secretary to the Governor